

Sri Ram Yadav v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 18 February 2010 · Writ-C No. 6055 of 2010 · **Impugned assessment quashed; fresh decision directed in accordance with law.**

HEADNOTE

A final order on provisional assessment that ignores the consumer's detailed objections to the assessment notice, and proceeds only on a later letter that was not those objections, is liable to be quashed. The licensee must decide afresh in accordance with law after the consumer is permitted to place additional material.

FACTUAL SUMMARY

Sri Ram Yadav's premises were inspected on 21 August 2009 and a provisional assessment followed. He had earlier challenged the inspection in W.P. No. 47550 of 2009, which was disposed of with a direction to decide after notice. After notice he filed a detailed objection on 20 October 2009 and later a letter seeking sympathetic restoration. By order dated 25 January 2010 the licensee rejected his representation and finalised the assessment. He sought quashing, alleging those objections were ignored and the 365-day assessment was unlawful.

HOLDING-UNITS

HOLDING-UNIT · EA2003

provisional assessment — consideration of objections

HOLDING

Where notice of provisional assessment is followed by a detailed objection, the assessing authority must consider that objection before finalising the assessment. An order that overlooks the objection and treats only a later, non-detailed letter is unsustainable and will be quashed, with a direction to take a fresh decision in accordance with law after the consumer files any additional documents. ¶ 1

FLAG order cites the Electricity Act and U.P. Electricity Supply Code, 2005 generally, without a numbered clause

PRINCIPLE TAGS

relegate-to-statutory-remedy A final order on provisional assessment that ignores the consumer's detailed objections to the assessment notice, and proceeds only on a later letter that was not those objections, is liable to be quashed.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE 365-DAY ASSESSMENT ACCORDED WITH THE ELECTRICITY ACT AND THE U.P. ELECTRICITY SUPPLY CODE, 2005

Petitioner argued no effort was made to find the actual period of use, and that at inspection supply was disconnected while the meter was running. The Court did not examine the assessment on merits. ¶ 1